

HAMEL BUILDERS, INC

5710 Furnace Avenue, Suite H

Elkridge, Maryland 21075

410-379-6700 410-379-2909 (Fax)

Job No. 3358

TRANSACTION ORDER #

Created by PM ____ Field ____

ISSUED TO: _____

add checkmark

- ☐ PURCHASE ORDER
☐ EXTRA TO CONTRACT
☐ DECREASE TO CONTRACT
☐ BACKCHARGE
☐ TRANSFER ORDER

VENDOR # (if applicable) _____

DATE: _____

The above agrees to supply (or accept charges for, if a backcharge or transfer transaction) all materials or equipment as indicated; or to supply all material and labor necessary to complete the Work described as it pertains to the property identified above:

DESCRIPTION OF WORK:

REASON FOR PURCHASE/CHANGE:

- ☐ CCD# _____
☐ ASI# _____
☐ RFI# _____
☐ RFP# _____
☐ PCO# _____

Sub Total

Sales Tax

FOR THE TOTAL SUM OF

\$ _____

All provisions of contracts between the above parties pertaining to the above job are applicable to this agreement:

Accepted this ____ day of _____, 20

HAMEL BUILDERS, INC.

By: _____

By: _____

Project # 3358 PI ____ Cost Code _____ Type _____

PROJECT: The Pointe at Town Center
TRANSACTION ORDER

TERMS AND CONDITIONS

It is further agreed between the Contractor and Supplier that:

1. **Title:** Supplier warrants that it has good and marketable title to all materials and equipment supplied pursuant hereto, free of all liens and encumbrances whatsoever.
2. **Material and Workmanship:** Supplier expressly warrants that all material and work covered by this order will conform to the Contract Documents and that it will be merchantable quality, of first-class material and workmanship, free of latent defects, conforming to all applicable laws, ordinances, regulations and codes, and that it is fit and sufficient for the purposes for which it is ordered by the Contractor.
3. **Guarantee:** All materials, equipment and incidentals supplied pursuant to this Purchase Order are, and shall be, guaranteed by Supplier for a period of one year from the date of completion of the Project or for such longer period as may be provided in the Contract Documents. Nothing in this Paragraph 3 shall operate to shorten any manufacturer's warranty.
4. **Delivery:** All materials and equipment to be supplied pursuant hereto shall be delivered f.o.b. jobsite. Time is of the essence hereof. Delivery will be made in accordance with the established construction schedule provided by Contractor, as same may be modified from time to time by the Contractor and made known to Supplier. If Supplier fails to deliver on time for reasons beyond its control, Contractor may, at its sole discretion: (a) extend in writing the time for delivery or (b) terminate this Purchase Order by sending written notice thereof to Supplier and pay to Supplier the value of the goods delivered to the date of termination, and thereupon be relieved of all obligations to Supplier. If Supplier otherwise fails to perform on time, the provisions of Paragraph 6 hereof shall apply. Deliveries shall be made to such locations within the jobsite (or other location) as is specified by the Contractor's site manager. Supplier shall assume all risks of loss or damage for the items provided hereunder until such time as they have been delivered, unloaded and accepted by the Contractor.
5. **Liens:** Supplier shall not permit any liens to be filed against the project or any part thereof. Supplier shall execute releases of liens for all materials and equipment delivered and paid for pursuant hereto.
6. **Indemnification and Breach:** Supplier hereby indemnifies Contractor against any and all claims arising out of or connected to a breach of this Purchase Order by Supplier or any person or firm in its control. In the event of any breach of this Purchase Order by Supplier, Contractor may avail itself of any or all of the following remedies: (a) to cure the breach and deduct the full cost of such cure from the payment due Supplier; (b) cancel this Purchase Order by written notice, and secure the required material and equipment from whatever source Contractor deems advisable, whereupon no payments shall be made to Supplier until such substituted goods have been delivered to and paid for by Contractor and Supplier shall be fully liable for any costs in excess of the price specified herein resulting from Contractor's securing such goods; and (c) to avail itself of any and all remedies provided by law or in equity. A waiver by Contractor of any breach hereof shall not be deemed a waiver of any other, or subsequent breach.
7. **Equal Employment and Contracting Opportunity Requirements:** This Purchase Order is subject to the requirements set forth in Executive Order Nos. 11246, 11625 and 12138 with all current implementing regulations and amendments.
8. **Terms of Payment:** Supplier shall be paid on or about the fifteenth of the month following the month in which invoices are received by the twenty-fifth of the month.
9. **Price Protection:** The price structure indicated on the face of this order is firm for the duration of the project. This order is not subject to escalation.
10. **Shop Drawings/Submittals:** Supplier shall furnish to Contractor in a timely manner all shop drawings and/or submittals required to obtain approval of the goods and/or equipment furnished under this Purchase Order. The cost for the furnishing of these shop drawings and submittals is included within the total cost of this Purchase Order. Supplier shall make no substitutions whatsoever in any material or equipment to be delivered pursuant hereto without prior written authorization from the Contractor.
11. **Complete Agreement:** This Purchase Order represents the entire agreement between the parties and may not be amended or modified except in writing, signed by both parties prior to the effective date of any such amendment or modification. No other agreements, representations, warranties or other matters, oral or written, shall be deemed to bind the parties hereto.